

Mohammad Khalid v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 25 May 2022 · Writ - C No. 9159 of 2022 · **Writ disposed; Para 6.5 objection to be decided; coercive recovery stayed**

HEADNOTE

Writ against a provisional electricity demand disposed of without any opinion on merits, with liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks, to be decided within four weeks after a hearing, and with coercive action stayed for eight weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Mohammad Khalid filed Writ-C No. 9159 of 2022 in the Allahabad High Court against the State of Uttar Pradesh and another, seeking quashing of a provisional demand notice dated 15 April 2019 issued by respondent no. 2 and a restraint on recovery under it. Counsel for respondent no. 2 stated on instructions that the petitioner could file an objection to the demand, to be decided in accordance with law within a fixed time. Justices Surya Prakash Kesarwani and Jayant Banerji heard the State and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to provisional demand

HOLDING

Without expressing any opinion on merits, the writ challenging the provisional demand notice dated 15.04.2019 is disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks, together with a certified copy of the order. If submitted in time, respondent no. 2 shall decide the objection in accordance with law within the next four weeks after a reasonable opportunity of hearing. For eight weeks, or until disposal of the objection, whichever is earlier, no coercive action shall be taken on the impugned demand. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ seeking quashing of the provisional demand and a restraint on recovery was disposed of, without any opinion on merits, by relegating the petitioner to an objection under Para 6.5 before respondent no. 2. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The disputed provisional demand notice dated 15.04.2019 was left to an objection under Para 6.5, to be decided within four weeks of filing after a hearing, with coercive action stayed until that decision or for eight weeks, whichever is earlier. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL DEMAND NOTICE DATED 15.04.2019 IS LIABLE TO BE QUASHED

The Court expressed no opinion on the merits and left the objection to be decided by respondent no. 2. ¶ 4